

GLOCAL'S NATIONAL YOUTH
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Child welfare and Indigenous children

The original residents of Canada are known as Indigenous peoples in the North American landmass portion in Canada. The First Nation, Inuit and Metis, are collectively referred to as the Indigenous peoples. The early explorers who believed they had reached India in their search for a route to the east are widely credited with coining the term "Indian". Regardless of whether this is the case, the term is currently used to describe a group of indigenous people who are registered as such under the Indian Act. The Indian Act is a law that was passed in 1876 by the Canadian government to control and assimilate Indigenous people and their communities. And to mention The term "Indian" is a bit problematic because it is a colonial term that does not reflect their diversity and sovereignty. It also has negative connotations of racism, oppression, and discrimination that are associated with Indian act and the Indian residential school.

The Indigenous peoples of Canada are the original residents and the first nations of the country. Before the arrival of Europeans, First Nation people inhabited North America. The European settlers who came from Europe to live in North America did not have the same freedoms or privileges as the people who were already living there before them. For example, they did not have the same access to land, resources, or political power as the Indigenous peoples. As well as the Inuit and Metis known as the First Nation people. Furthermore, their culture, way of life, and medical treatment are different from the Canadian western people. In the earliest, The Indigenous people were not under the support of the Canadian government,

with no access to any social services, or health services even more than 100 people lived in single rooms, without control over hygiene. they have had less access to the basic requirements of their life in the past year.

The child welfare and Indigenous children's culture, laws and traditions dictated how Indigenous families and communities cared for their children. The parents were responsible for raising the spirit of the child as gifts from the creator. ~This is more based on the belief that children are sacred and precious in many Indigenous cultures. It means that the parent's role is to nurture and guide the child's spirit, which is a special gift from the Creator or the source of life.~.The extended family played a significant role in raising children. The enactment of colonial laws like the Indian Act and the development of the residential school system interrupted traditional methods of childcare. The residential schools were not just a force for assimilation, but also a means of governmental care for abused and neglected Indigenous children. The duty for Indigenous children's welfare was then transferred to the child welfare system as the residential school system started to fade away in the second part of the 20th century (Manitowabi.S.2018, para. 4).

The European settlers who arrived in North America did not respect the rights of the original inhabitants. One of the ways that the government of Canada tried to assimilate Indigenous children was by removing them from their families and communities and sending them to residential schools. Residential schools were government-sponsored, church-run schools that operated in Canada for more than 160 years. The first residential schools were established by Catholic nuns and priests in the 1600s, but they became more widespread after the Confederation in 1867. In residential schools, Indigenous children were forbidden to speak their languages, practise their cultures, or follow their traditions. They were often abused emotionally, physically and sexually by the staff and teachers. The Indigenous extended family has a strong duty of care to their children and raises them according to their own laws and values. However, because of the residential school system, many Indigenous people could not raise their children in their own way. The children were also deprived of the love and compassion of their families.

(Atlas/ Truth and Reconciliation ,(2023), para,2)

Child welfare

The goal of child welfare is to provide families with the support they need to successfully care for their children while ensuring that children are safe. Furthermore, encouraging or planning services to stop child abuse and neglect. In addition, when safety at home cannot be guaranteed, child welfare services make arrangements for children to live with kin or in the foster home. Some services support foster children and adopted children's well-being, particularly by seeing to that their educational needs are met. When children and youth leave foster care, child welfare services work with them and their families to promote family

reunification, adoption, or other long-term families. The goal is to strengthen families whose children are in out-of-home care, support healthy connections between children and their families, and help foster families work together with birth families to increase the likelihood of reunification. In Canada, each state and locality have a public child welfare agency in charge of accepting and looking into complaints of child abuse and neglect as well as determining the needs of children and families. Moreover, the child welfare system is not a single organization. To ensure that families receive the services they require, the system offers supportive child care, parenting classes, in-home family preservation services, mental health services, and drug and alcohol treatment. On the other hand, public child welfare agencies frequently work in collaboration with private child welfare agencies community-based organizations and other public agencies (Child Welfare Information Gateway[CWIG],2018, p.1).

The children's necessities include food, clothing, safe shelter, education, and living and rising under the care and supervision of their parents. The child welfare system aims to keep children safe and healthy by providing services and assistance to their families, However, it is important to note that the child welfare system has a long history of structural racism and implicit bias, which has led to an adversarial relationship between many Indigenous families and the system. The system often operates as an extension of older, more overtly colonial projects, which has resulted in Indigenous children being disproportionately represented in the child welfare system. While the system aims to keep children safe and healthy, in some cases, it is not enough and the children are at risk of abuse or neglect. When this happens, the child welfare system has to intervene and find alternative living arrangements for the children, such as relatives or foster families who can care for them.

(Using Peacemaking Circles to Indigenize Tribal Child Welfare,2022,p1-4)

Statistics on Indigenous children in care (foster, group home, adoption) over the last 20 years

According to the 2016 census, Indigenous children make up 7.7% of the total population of children in Canada, but 53.8% of these children are in foster care. This indicates that 14 970 out of 28 665 foster children under 15 living in private households are indigenous. According to the 2011 National Household Survey, 38% of Indigenous children in Canada and 7% of non-Indigenous children live in poverty (Government Report, [GR], 2022, para. 2).

The Canadian census highlights the disparities between the lives of Indigenous and non-Indigenous people in Canada. The Indigenous people were subjected to a lot of pain and loss as their children were taken away from them and forced to attend residential

schools. These schools were run by the government and churches, who aimed to erase the Indigenous culture and language from the children and assimilate them into Canadian culture. The children were often mistreated and abused in these schools, with many of them dying or never returning to their families. More than half of the children, 53.8%, grew up without any connection to their ancestry, culture, or family bonds. ([Episode 35: Foster Care: A Path to Reunification – Part 1])

Table one shows the percentage of Indigenous children from 2006 to 2020 who were in foster care and group homes as well as children placed in adoption homes in the service delivery area in 2021.

Percentage of Indigenous children in care by placement type
(Table One)

(Table

No	Years	Indigenous						
		Foster care	Group Home	Children Placed in Adoption Homes 12-Month Period Ending March 31, 2021 Current as at May 19, 2021				
1	2006 to 2007	89.67%	4.44%	Service Delivery Area	Number of Adoption Placements	Percent of Eligible Children Placed: All	Percent of Eligible Children Placed: Indigenous	Percent of Eligible Children Placed: Non-Indigenous
2	2007 to 2008	90.24%	4.34%	Coast/North Shore	*	15.4%	5.3%	42.9%

3	2008 to 2009	81.07%	4.88%	East Fraser	13	22.4%	33.3%	21.1%
4	2009 to 2010	82.42%	3.89%	Indigenous Child and Family Service Agencies	15	6.8%	6.8%	-
5	2010 to 2011	81.72%	4.00%	Kootenays	*	29.4%	33.3%	27.3%
6	2011 to 2012	79.96%	4.81%	North Central	*	6.8%	6.8%	6.7%
7	2012 to 2013	78.55%	4.31%	North Fraser	14	21.5%	7.1%	47.8%
8	2013 to 2014	74.90%	4.65%	North Vancouver Island	18	15.9%	13.3%	21.1%
9	2014 to 2015	76.07%	5.25%	Northeast	*	22.2%	16.7%	33.3%
10	2015 to 2016	76.97%	4.51%	Northwest	-	-	-	-

11	2016 to 2017	75.23%	4.40%	Okanagan	27	26.0%	15.0%	32.8%
12	2017 to 2018	72.73%	4.67%	South Fraser	17	20.5%	17.2%	22.2%
13	2018 to 2019	69.73%	4.94%	South Vancouver Island	*	11.0%	5.0%	16.7%
14	2019 to 2020	67.94%	4.89%	Thompson Cariboo Shuswap	*	20.0%	16.7%	22.2%
15				Vancouver/Richmond	17	25.8%	4.8%	35.6%
				British Columbia	154	16.9%	9.9%	27.1%

According to the Canadian government's 2021 census data, the adoption rate for Indigenous children in Canada was 57%, while the adoption rate for non-Indigenous children was 76%. This data suggests that Indigenous children have a lower rate of adoption compared to non-Indigenous children. It is important to note that research has shown that steady and ongoing interaction with a nurturing caregiver is crucial for children's physical, social, emotional, and cognitive development. However, only 5.76% of eligible children were adopted by families, while the majority remained in foster care or other institutions.

(Canadian government's 2021 census data: Research on child development)

Reasons for Indigenous children entering care

It is important to acknowledge the historical treatment of Indigenous people in Canada, particularly their children, which has been rooted in a legacy of bloodshed and violence. Residential schools, which operated from 1831 to 1996, exemplify this dark history. Children were forcibly separated from their families in an attempt to assimilate them into Western culture, resulting in physical, biological, and cultural harm that Canada has acknowledged as genocide. Furthermore, discrimination against Indigenous communities and their schools during this period further compounded their suffering. This legacy of marginalization, stemming from colonialism and discriminatory government policies, continues to impact Indigenous people economically, politically, and culturally (Bail, 2020).

The Canadian government and Christian churches established the Residential School system to assimilate Indigenous children into Canadian culture. The schools disrupted lives and communities, causing long-term problems among Indigenous people 1. The policy of assimilation or merging two cultures was implemented without considering the positive and negative results, which represented a disregard for Indigenous peoples' identity, esteem, and dignity 1. The identity of a human being holds great value and significance for each member of a family, race, and even country. In fact, it had been an official exceed through the physical, biological, and cultural genocide of these communities of Aboriginal people in Canada in the past 1. The mandatory discipline of the residential school system had a profound impact on the mental health of individuals and families. However, the need for Indigenous peoples to recover from the effects of colonisation, eviction, and assimilation remains a significant issue in Canada. This trauma often manifested in psychoneurotic symptoms, which affected how individuals interacted with society and their communities. The residential school system in Canada had severe consequences for Indigenous children and communities. Many survivors experienced trauma and suffered from mental health conditions such as anxiety, depression, post-traumatic stress disorder (PTSD), and other mental health conditions. The Indian Residential Schools Settlement Agreement, reached in 2007, is the largest class action settlement in Canadian history. The federal government officially expressed regret for the residential school system to Indigenous people in 2008 (Stokes, 2017, P.286).

In 1996, the Royal Commission on Aboriginal peoples (RCAP) compiled the results of six years of study and public input on Aboriginal concerns. It was a fairly comprehensive investigation of the overall situation but in terms of the residential schools specifically, the TRC's various reports are probably among the most extensive work if not the actual most. The Canadian government has implemented various initiatives to address the historical trauma experienced by Indigenous peoples, including the Royal Commission on Aboriginal Peoples (RCAP) and The Indian Residential Schools Settlement Agreement (IRSSA). The IRSSA was established in 2007 to bring a fair and lasting resolution to the

legacy of Indian Residential Schools, which were created to assimilate Indigenous children into the dominant Canadian culture by isolating them from their own culture and religion.

The Royal Commission on Aboriginal Peoples (RCAP) and The Indian Residential Schools Settlement Agreement (IRSSA) were significant events in 1969 and 2007, respectively. The RCAP was a research initiative that investigated the challenges affecting the relationship between Indigenous peoples, the Canadian government, and Canadian society as a whole. The IRSSA was an agreement that aimed to bring a fair and lasting resolution to the legacy of Indian Residential Schools. The research outcomes of these initiatives led to the Federal Government apologising to Indigenous nations for their past policies. These initiatives are important for the First Nation of Canada, especially for new generations and children of Indigenous people, as they portray the real face of the betrayer to the public and government.

Statistics Showing the Difference Between How Many Indigenous Children are in Care Versus Non-Indigenous Children

According to the 2021 census data released by Statistics Canada, Indigenous children accounted for 53.8% of all children in foster care. This represents a slight increase from the 2016 census, which found that 52.2% of children in care under the age of 14 were Indigenous. In Manitoba, approximately 90% of children in care are Indigenous. The revelations that there are hundreds of Indigenous children buried in unmarked graves at the sites of former residential schools have brought renewed attention to the treatment of Indigenous children in Canada. The loss of family and cultural connections can be devastating to children in care. “Not knowing your culture just drives an anger inside you,” says Christine Miskonoodinkwe-Smith, who is of Saulteaux descent. “It separates you from your very own identity in a way, because you have to live in two worlds. You’re living in a non-indigenous world, but then you know there’s another worldview, which is your culture”.

(Why Canada is reforming Indigenous Foster Care **By Peter Goffin**)

The Canadian government has taken steps to reform the foster care system and address the injustices faced by Indigenous children. However, more work needs to be done to ensure that Indigenous children receive the attention and consideration they deserve.

Neglect had been substantiated as abuse in 60% of Aboriginal children in the child welfare system, compared to 30% of non-indigenous children. Indigenous children in Canada were five times more likely than non-Indigenous children to have allegations of neglect proven when population size was taken into account. In contrast, spousal violence, physical abuse, or neglect account for nearly a third of all incidents of child maltreatment of non-Aboriginal children. When compared to non-Indigenous children, Indigenous Children have certain benefits, such as lower rates of physical harm and more attention to child functioning. However, these benefits can be influenced by a variety of factors, such as their environment, social support, and access to resources. Children who

grow up in environments with high levels of violence or poverty may be at greater risk for physical harm and may experience more challenges with child functioning. The overrepresentation of Aboriginal Children in child protection agencies is not explained by these disparities (University of Northern British Columbia[UNBC],2010,” Protection” para.12).

When we think about the statistics of neglect, abuse, violence and physical violence between both Communities (Aboriginal and non-Aboriginal), people from all races and ethnicities can experience vulnerability within their communities. This can be due to a variety of factors, such as discrimination, violence, poverty, or social isolation. It is important to recognize that vulnerability can affect people from all backgrounds and communities, and it is important to provide support and resources for those who are affected. Both Indigenous and non-Indigenous people can experience trauma within their communities or families. If Indigenous families are neglected by social activists or government supporters, this can lead to trauma for Indigenous people. Similarly, if non-Indigenous people experience violence or discrimination within their own families, this can also be traumatic. It is important to provide support and resources for those who are affected. For instance, most of the non-Indigenous people are not satisfied and repine about family violence especially male domination and some other children maltreatment. Social neglect and family neglect can both have negative impacts on an individual’s well-being and quality of life. Society, all people should have the same legal rights and responsibilities as citizens of that country, and they should be able to live without discrimination. This means that everyone should be treated equally under the law, regardless of their race, ethnicity, gender, religion, or any other characteristic. Discrimination can take many forms, including unequal access to education, employment, housing, and healthcare. Societies need to work towards eliminating discrimination and promoting equality for all people.

Education can play a crucial role in promoting understanding, empathy, and respect for others. By teaching our children and families about different cultures, traditions, and perspectives, we can help them develop a more inclusive and compassionate worldview. This can help to break down barriers between different groups and promote greater harmony and understanding in our communities. Based on the 2021 census data, Indigenous children are overrepresented in Canada’s foster care system.

History of Care of Indigenous Children (Residential Schools, Sixties Scoop, etc.)

The implementation of colonial laws like the Indian Act and the development of residential school systems disrupted traditional methods of child-rearing among Indigenous people in Canada. The residential schools acted as state care facilities for abused and neglected Indigenous children, in addition to being a force for assimilation. The child welfare system took up responsibility for Indigenous child welfare as the residential school system started to be phased out in the second half of the 20th century. Child rearing of Indigenous children in Canada has a traumatic history, particularly after the creation of residential schools. Children who were taken away from their parents experienced significant

oppression, as they were not only dependent on their parents but also on the affection of their extended family. They had to navigate questions such as how to sleep, how to feed themselves, and who would tell them stories. These challenges were compounded by the fact that they were far from their family and extended family, which led to mental and physical disorders. Furthermore, the conditions in residential schools forced Indigenous children to abandon their own language, culture, and traditions. This was another significant point that traumatised and harmed them physically and mentally

In residential schools, if students spoke their native language or acknowledged their culture, they would suffer severe punishment. Siblings were occasionally prohibited from exchanging greetings. Additionally, residential schools only offered a poor quality of education to Indigenous students, frequently only up to grade five. Beginning in 1990, the Canadian government and the Anglican, Presbyterian, United and Roman Catholic churches started to acknowledge that they were behind an educational programme that was intended to not only establish dominance over Indigenous peoples, but also to obliterate their culture. The Canadian government officially apologised for the long-lasting harm caused by the residential school system on June 11th, 2008 in Parliament.

(July 14, 2014, Government Apology to Former Students of Residential Schools)

The Sixties Scoop is one outcome of this, thousands of kids were taken out of their neighbourhood in the 1960 and placed in non-Indigenous foster and adoptive homes. By the late 1970s and early 1980s, one in seven status Indigenous children were never in their parents' custody, and up to one in four spent at least some time away from the parental household. As a result of persistent criticism that included a court probe led by Manitoba Judge Edwin Kimelman, the sixties scoop was widely denounced in the middle of the 1980s. Policy adjustments resulted from the investigation, indicating the need for more culturally aware laws and a shift toward Indigenous centred child and family support organisations. According to the Canadian Encyclopedia, cultural genocide is a concept that builds on, and is related to, understandings of genocide. It is the intentional destruction of a culture and does not necessarily involve killing or violence against members of the group in question. Fewer children were lost in a system that was overseen by many kind individuals. Unfortunately, without more context, it is difficult to understand what system or individuals are being referred to. The child welfare system served as the contractor for constructing the route to hell, which was laid with good intentions. (Hick & Stokes, 2017, p. 282).

The Emotional, Psychological, Physical and Mental Effects of Care on Children (identity, culture)

Indigenous people's health and well-being are affected by colonisation in all facets, including their mental, emotional and spiritual well-being, in addition to their physical health. It is commonly known that, in comparison to the non-Indigenous population, Indigenous people in Canada have an

excessive burden of illness. These health disparities are largely the result of government policies that attempt to assimilate Indigenous people into Euro- Canadian ways of life. These policies harmed children physically and emotionally, lowered educational achievement, caused a loss of culture and language, and the disruption of family structure among other things. Therefore, many of the illnesses and disorders that Indigenous people disproportionately experienced, such as obesity, diabetes, and cardiovascular disease, have been linked to the long-lasting effects of colonialism, including the Indian Act, the reserve system, and residential schools. (Wilk, Maltby Cook.2017,p.1-2).

Colonisation and residential schools have had a significant impact on the lives of Indigenous people in Canada. These factors have created significant challenges for Indigenous people, including political and economic marginalisation, loss of land and resources, human rights violations, discrimination, and unemployment. Indigenous people in Canada have faced significant challenges in accessing healthcare and psychotherapy. While they were able to find certain herbal remedies to treat physical illnesses, they were unable to find effective psychotherapy treatments. The elder generation of Indigenous people experienced significant psychological, emotional, and economic suffering due to homelessness, food insecurity, and lack of access to healthcare. Additionally, the conditions in residential schools were often abusive and neglectful, leading to terrible living circumstances for the children under their care. This resulted in many children becoming ill and dying, while others experienced long-term mental health issues and trauma

The Impact of Child Welfare for Indigenous Children on Indigenous Parents, Families and Communities

Child welfare policies for Indigenous children in Canada should be tailored to meet the unique needs of each nation and community. The impact of child welfare on Indigenous children has resulted in significant problems with the transition to adulthood for young people exiting the foster care system. The issues of arbitrary age cut-offs, lack of support, and lack of funding are well documented, but they have not been effectively addressed to date. Indigenous children are often placed in foster care and residential schools, which are generally reserved for children who have substantial emotional, behavioural, or health challenges. These practices and principles form the basis for how Indigenous families and communities view child welfare

Child welfare has had a significant impact on Indigenous children and their families in Canada. Children who were taken away from their families and placed in child welfare centres experienced spiritual and mental traumas, which included drug use, homelessness, misbehaviour, and mental illness. These experiences made it difficult for them to transition into adulthood. Additionally, they were separated from their culture, traditions, and language. This disconnection from their families caused mental stress and grief for both the children and parents. As a result, both children and parents may struggle with addiction and lead disorganised lives filled with stress and suffering. When the fundamental base of the family is distorted, both children and parents may struggle to support themselves and may not be able to contribute positively to their community

How Child Welfare for Indigenous Children Has Changed and Improved. What are the new policies?

According to proposed legislation amendments published by the Ministry of Children and Family Development, Indigenous groups will be more involved in child welfare decisions to assist keep their children out of foster care, safe in their native communities. The administration has made it a top priority to maintain Indigenous children's ties to their families and communities, and these legal amendments are the first step in that direction. To improve the child welfare system and lower the number of Indigenous children in foster care, we will keep listening to and collaborating with Indigenous communities. According to Scott Fraser, Minister of Indigenous Relations and Reconciliation, "Our government believes that Indigenous children should have every chance to live, flourish, and grow in their native community, surrounded by their language and culture. ("proposes changes- Indigenous child welfare,"2008, para.2-3).

The recent amendments to the Ministry of Children and Family Development show a bright future for the indigenous families and their children. The government promised they will not provide a circumstance to create separation between the child and their family, extended family, culture, tradition and community. The door of opportunity will be opened and they could build their future according to their own culture and native language.

In 1996, the Royal Commission on Aboriginal peoples (RCAP) compiled the results of six years of study and public input on Aboriginal concerns. It was the most thorough compilation of such information ever released and gave a factual foundation for starting to address the historical trauma imposed on the Indigenous people of Canada. The need for Indigenous people to recover from the effects of colonisation, eviction and assimilation. Another initiative to alleviate historical trauma was put into action in 2007.

Examples of Historical Events that Contribute to Intergenerational Trauma

Intergenerational trauma, or historical trauma, refers to the legacy of painful experiences that are experienced by a group of individuals collectively. These cultures have frequently experienced oppression, and subsequent generations, and have been affected socially and psychologically. Historical traumatic events that cause a community's collective suffering, their extensive consequences on the Indigenous population and the deliberate malign intent of outsiders who caused these traumatic events are the three key elements that make up historical trauma's effects. These have been well documented, and they can manifest as drug misuse, suicidal thoughts, sadness, anxiety, low self-esteem, rage, violence, and issues with emotion management (Abbriano, K. (2022), para.4).

Conclusion

Many of the issues surrounding child abuse and neglect in Indigenous communities have a direct correlation to colonization and Residential School experiences. Indigenous people in various nations and groups have been affected by colonial processes. The child welfare system has had significant health consequences for Indigenous children and teenagers, and it has been criticised for placing the majority of its clients in the criminal justice system, which can negatively impact their future prospects. In some cases, this system has resulted in the loss of young lives that could have been productive. Although there have been positive developments, not all Indigenous people have benefited from them. It is important to strengthen existing organizations and provide opportunities for Indigenous people to be represented by Indigenous organisations.

Indigenous people need to continue taking on more accountability for the service and programmes for children and families that touch them. All Indigenous people will have access to culturally appropriate child and family services by expanding the scope and number of mandated Indian agencies. Since child welfare is a provincial and territorial concern, it is challenging to find national data on children in care. Eight values that are fundamental to Indigenous views on child welfare include decolonization, wholism, trauma-informed approaches, family-centred approaches, relationship-centred approaches, cultural-safety, harm reduction, and self-determination.

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